



DEPARTMENT OF REGULATORY AGENCIES

Healthcare Professions Profiling Program

DIRECTOR RULE 2 - IMPOSITION OF ADMINISTRATIVE FINES PURSUANT TO THE MICHAEL SKOLNIK MEDICAL TRANSPARENCY ACT OF 2010.

4 CCR 743-2

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.1 Introduction

Basis: The authority for the promulgation of this Rule by the Colorado Division of Professions and Occupations is set forth in section 12-30-102(11), C.R.S.

Purpose: The purpose of this Rule is to set forth the procedures for imposition of an administrative fine pursuant to section 12-30-102(9), C.R.S.

1.2 Rule

A. Introduction:

The imposition of an administrative fine does not preclude the Director from referring such action to the applicable state board or program that regulates the applicant's or licensee's profession under Title 12, C.R.S. The administrative fine may be in lieu of or in addition to any disciplinary action. Payment of an administrative fine does not exempt the applicant or licensee from compliance with the Transparency Act.

B. Procedure:

When an applicant fails to comply with the requirements of the Transparency Act, the Director may issue an Order of Administrative Fine in an amount not to exceed five thousand dollars. The Order of Administrative Fine shall be sent by first-class mail, postage prepaid, to the applicant's or licensee's address of record. The Order of Administrative Fine shall set forth a statement of the general nature of the issues underlying the imposition of the administrative fine. The Order of Administrative Fine shall inform the applicant or licensee that the Director shall not issue a license to or renew, reinstate, or reactivate the license of an applicant or licensee who has failed to pay the administrative fine.

An administrative fine is not a disciplinary action. An applicant or licensee seeking to contest the imposition of an administrative fine must request an administrative hearing within thirty (30) days of the date on which the Order of Administrative Fine is mailed. In the event that a hearing is not requested within thirty days, the Order shall be Final. Any administrative hearing requested shall conform with section 24-4-105, C.R.S., and shall occur in the Office of Administrative Courts.

Revised 1/28/2011; Effective 4/1/2011; Effective 11/1/2011

Editor's Notes

History

Entire rule emer. rule eff. 08/11/2010.

Entire rule eff. 12/01/2010.

Entire rule eff. 04/01/2011.

Entire rule eff. 11/01/2011.